ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*
ROBERT K. HANNA, State Bar No.: 341970 / JUNQIAO XIAO, State Bar No.: 341670 / HYO JIN JULIA JUNG, State Bar No.: 316090 / MICHAEL D. KAHN, State Bar No.: 236898 / LAMONT FREEMAN, State Bar No.: 349862
MIDLAND CREDIT MANAGEMENT, INC
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108

TELEPHONE NO.:(866) 300-8750 FAX NO.: (858) 309-1588
E-MAIL ADDRESS (Optional): CaliforniaLegal@MCMCG.com
ATTORNEY FOR *(Name)*:MIDLAND CREDIT MANAGEMENT, INC.

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
10/04/2024
Clerk of the Court
BY: MADELLE MACADANGDANG
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 MCALLISTER STREET
MAILING ADDRESS:
CITY AND ZIP CODE: SAN FRANCISCO CA 94102
BRANCH NAME: CIVIC CENTER COURTHOUSE

PLAINTIFF/PETITIONER: MIDLAND CREDIT MANAGEMENT, INC.
DEFENDANT/RESPONDENT: LISA OREILLY

REQUEST FOR DISMISSAL

CASE NUMBER: CGC-24-614470

A conformed copy will not be returned by the clerk unless a method of return is provided with the document.

This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)

1. **TO THE CLERK:** Please **dismiss** this action as follows:
   a. (1) ☐ With prejudice (2) ☒ Without prejudice
   b. (1) ☐ Complaint (2) ☐ Petition
   (3) ☐ Cross-complaint filed by *(name)*: on *(date)*:
   (4) ☐ Cross-complaint filed by *(name)*: on *(date)*:
   (5) ☒ Entire action of all parties and all causes of action
   (6) ☐ Other *(specify)*:*

2. *(Complete in all cases except family law cases.)*
   The court ☐ did ☒ did not waive court fees and costs for a party in this case. *(This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed.)*

Date: SEP 25 2024

☐ ROBERT K. HANNA / ☑ JUNQIAO XIAO
☐ MICHAEL D. KAHN / ☐ HYO JIN JULIA JUNG
☐ LAMONT FREEMAN

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY) ▶ (SIGNATURE)

*If dismissal requested is of specified parties only, of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.

Attorney or party without attorney for:
☒ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

3. **TO THE CLERK:** Consent to the above dismissal is hereby given.**
Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY) ▶ (SIGNATURE)

** If a cross-complaint—or Response (Family Law) seeking affirmative relief—is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

Attorney or party without attorney for:
☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

(To be completed by clerk)

4. ☐ Dismissal entered as requested on *(date)*:
5. ☐ Dismissal entered on *(date)*: as to only *(name)*:
6. ☐ Dismissal **not entered** as requested for the following reasons *(specify)*:
7. ☐ a. Attorney or party without attorney notified on *(date)*:
   b. Attorney or party without attorney not notified. Filing party failed to provide
   ☐ a copy to conform ☐ means to return conformed copy

DISMISSAL ENTERED
10/04/2024
By: MADELLE MACADANGDANG
Deputy Clerk

Date: Clerk, by _____, Deputy

PLAINTIFF/PETITIONER: MIDLAND CREDIT MANAGEMENT, INC. DEFENDANT/RESPONDENT: LISA OREILLY	CASE NUMBER CGC-24-614470

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover $10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived fees and costs in this action for *(name):*
2. The person named in item 1 is *(check one below):*
   a: ☐ not recovering anything of value by this action.
   b. ☐ recovering less than $10,000 in value by this action.
   c. ☐ recovering $10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and costs that were waived in this action have been paid to the court (check one): ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

_____ ▶ _____

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION) (SIGNATURE)

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF SAN DIEGO} ss.

I am a citizen of the United States and employed in the County of SAN DIEGO, State of California; I am over the age of 18 and not a party to the within entitled action; my business address is 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO, CA 92108.

On SEP 30 2024, I served the foregoing document, described as

REQUEST FOR DISMISSAL

on the interested parties to said action by the following means:

X (By Mail) By placing a true copy thereof, enclosed in a sealed envelope with postage thereon fully prepaid, for collection and mailing on that date following ordinary business practices, in the United States Mail at the offices of MIDLAND CREDIT MANAGEMENT, INC., California, addressed as shown below. I am readily familiar with this business's practice for collection and processing of correspondence for mailing with the U.S. Postal Service, and in the ordinary course of business correspondence would be deposited with the U.S. Postal Service the same day it was placed for collection and processing.

_____ (By Mail) By placing a true copy thereof, enclosed in a sealed envelope with postage thereon fully prepaid, in the United States Mail at SAN DIEGO, California, addressed as shown below.

_____ (By Hand Delivery) By causing a true copy thereof, enclosed in a sealed envelope, to be delivered by hand to the addresses shown below.

_____ (By Personal Service) By personally delivering a true copy thereof, enclosed in a sealed envelope, to the address shown below.

_____ (By Overnight Delivery) By placing a true copy thereof, enclosed in a sealed envelope, with delivery charges prepaid, to be sent by _____, addressed as shown below.

_____ (By Facsimile Transmission) By transmitting a true copy thereof by facsimile transmission from facsimile number, to be interested parties to said action; the transmission was reported as completed and without error, and a copy of the transmission report, which was properly issued by the transmitting facsimile machine, is attached hereto and incorporated herein by reference. Said documents were transmitted to the interested parties as shown below at _____a.m./p.m.

I declare under penalty of perjury that the foregoing is true and correct, and that I am employed in the office of a member of the Bar of this Court at whose direction the service was made.

Executed on SEP 30 2024, at SAN DIEGO, California.

Jacki Young

NAME AND ADDRESS OF EACH PERSON SERVED:
LISA OREILLY
610 W 42ND ST APT 51G
NEW YORK, NY 10036